

TENTATIVE RULING

Case: **Young v. American Honda Motor Company, Inc.**
Case No. CV2023-1242

Hearing Date: **April 16, 2026** **Department Fourteen** **9:00 a.m.**

The Court declines to consider new facts raised in plaintiff Jared C. Young's reply. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770.)

The Court rules on plaintiff's motion for attorney's fees, costs, and expenses (Cal. Rules of Court, rule 3.1702; Code Civ. Proc., § 1794) as follows:

- Plaintiff's request for anticipated fees in the amount of \$2,175.00 is **DENIED**. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470 [fees must have been actually incurred to be recoverable].)
- Plaintiff's request for costs in the amount of \$768.70 is **DENIED**. Defendant American Honda Motor Company, Inc., has produced undisputed evidence that these costs have already been paid. (Chen Decl., ¶¶ 7, 8, Exhibits A, B.)
- The Court finds that plaintiff's counsel's hourly rates are reasonable and commensurate with the rates in Yolo County. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1005; *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004; *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71 – 72; *Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1243; Song Decl., ¶¶ 11 – 16, 18, 29, 23.)
- The Court finds that except for the time entries identified below totaling \$216.00, all of the time expended by plaintiff's counsel was necessary and reasonable. (*Thon v. Thompson* (1994) 29 Cal.App.4th 1546, 1548–1549; *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; see *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; *Sundance v. Municipal Court* (1987) 192 Cal.App.3d 268, 274 [it is well settled that awards of attorneys' fees for paralegal time have become commonplace]; *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537 [if the billing entries sufficiently establish the tasks were carried out in connection with the litigation, the fact that they were block billed is of no consequence]; see also *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564 [“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.”]; Song Decl., ¶ 26, Exhibit 12.)
 - May 9, 2023: Cesar Utay - \$19.50;
 - May 10, 2023; Cesar Utay - \$19.50;
 - August 29, 2024: Tomas De Jesus – \$118.50; and

- October 24, 2024: Alexis Valdovino - \$58.50.

(Chen Decl., ¶ 11.)

The Court finds that these entries fail to provide sufficient detail to determine if the issues being handled were related to the litigation. (See *Martino v. Denevi* (1986) 182 Cal.App.3d 553, 558 – 559.)

Accordingly, the Court awards plaintiff attorney's fees in the amount of **\$20,516.00**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.